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April 14, 2025

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 1224

By: West (Kevin), Maynard,
Adams, Stark, Chapman,
Staires, Jenkins, Olsen,
Woolley, and Shaw of the
House

and

Rosino, McIntosh, Bullard,
Jett, Deevers, Sacchieri,
Burns, Prieto, Guthrie,
Standridge, Grellner, and
Frix of the Senate

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[ health care - minor self-consent - protections -
exceptions - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2602, is amended to read as follows:

Section 2602. A. Notwithstanding any other provision of law, the following minors may consent to have services provided by health professionals in the following cases:

1. Any minor who is married, has a dependent child, or is emancipated;

1 2. Any minor who is separated from his or her parents or legal
2 guardian for whatever reason and is not supported by his or her
3 parents or guardian;

4 3. Any minor who is or has been pregnant, or afflicted with any
5 reportable communicable disease, drug and substance abuse, or
6 abusive use of alcohol; provided, however, that such self-consent
7 only applies to the prevention, diagnosis, and treatment of those
8 conditions specified in this section. Any health professional who
9 accepts the responsibility of providing such health services also
10 assumes the obligation to provide counseling for the minor by a
11 health professional. ~~If the minor is found not to be pregnant nor~~
12 ~~suffering from a communicable disease nor drug or substance abuse~~
13 ~~nor abusive use of alcohol, the health professional shall not reveal~~
14 ~~any information whatsoever to the spouse, parent or legal guardian,~~
15 ~~without the consent of the minor;~~

16 4. Any minor parent as to his or her child;

17 5. Any spouse of a minor when the minor is unable to give
18 consent by reason of physical or mental incapacity;

19 6. Any minor who by reason of physical or mental capacity
20 cannot give consent and has no known relatives or legal guardian, if
21 two physicians agree on the health service to be given;

22 7. Any minor in need of emergency services for conditions which
23 will endanger his or her health or life if delay would result by
24 obtaining consent from his or her spouse, parent, or legal guardian;

1 provided, however, that the prescribing of any medicine or device
2 for the prevention of pregnancy shall not be considered such an
3 emergency service; or

4 8. Any minor who is the victim of sexual assault; provided,
5 however, that such self-consent only applies to a forensic medical
6 examination by a qualified licensed health care professional.

7 B. If any minor falsely represents facts that ~~he may~~ would
8 authorize him or her to give consent under subsection A of this
9 section and a health professional provides health services in good
10 faith based upon that misrepresentation, the minor shall receive
11 full services without the consent of the minor's parent or legal
12 guardian and the health professional shall incur no liability except
13 for negligence or intentional harm. Consent of the minor shall not
14 be subject to later disaffirmance or revocation because of his or
15 her minority.

16 ~~B.~~ C. 1. The health professional shall ~~be required to~~ make a
17 reasonable attempt to inform the spouse, parent, or legal guardian
18 of the minor of any treatment needed or provided under paragraph 7
19 of subsection A of this section.

20 2. In all other instances in which a minor may consent to
21 services under this section, the health professional may, but shall
22 not be required to, inform the spouse, parent, or legal guardian of
23 the minor of any treatment needed or provided. The judgment of the
24 health professional as to notification shall be final, and his or

1 her disclosure shall not constitute libel, slander, the breach of
2 the right of privacy, the breach of the rule of privileged
3 communication, or result in any other breach that would incur
4 liability.

5 D. 1. Except as provided by paragraph 2 of this subsection:

6 a. the parent or legal guardian of a minor shall have the
7 right to access and review all medical records of the
8 minor, and

9 b. a health professional shall not prevent or restrict
10 access to the minor's medical records by the parent or
11 legal guardian.

12 2. The provisions of paragraph 1 of this subsection shall not
13 apply to cases:

14 a. as described in paragraphs 1, 2, 5, and 6 of
15 subsection A of this section,

16 b. where such access and review is prohibited by law, or

17 c. where the parent or legal guardian is the subject of
18 an investigation of a crime committed against the
19 minor child and a law enforcement official requests
20 that the information not be released.

21 E. Information about the minor obtained through care by a
22 health professional under the provisions of ~~this act~~ Section 2601 et
23 seq. of this title shall not be disseminated to any health
24 professional, school, law enforcement agency or official, ~~court~~

1 ~~authority,~~ nonjudicial government agency, or official employer,
2 without the consent of the minor, except through court order or
3 specific legal requirements or if the giving of the information is
4 necessary to the health of the minor and public. Statistical
5 reporting may be done when the minor's identity is kept
6 confidential.

7 F. The health professional shall not incur criminal liability
8 for action under the provisions of ~~this act~~ Section 2601 et seq. of
9 this title except for negligence or intentional harm.

10 SECTION 2. This act shall become effective November 1, 2025.

11 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
12 April 14, 2025 - DO PASS AS AMENDED BY CS
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